

Calendar Line # 3
Case Name Cassondra Lascola et al vs Mohammed Al-Temimi M.D. et al
Case No. 26CV491239
Motion to Deem First Amended Complaint Filed Nunc Pro Tunc I. <u>BACKGROUND</u> A. BRIEF FACTUAL BACKGROUND This case stems from a medical malpractice- wrongful death claim. In April 5, 2025, Nancy LaScola underwent robotic cholecystotomy under the care of Defendants, including Mohammed Al-Temimi, M.D. (“Al-Temimi”). (Complaint, ¶ 7). Decedent La Scola passed away on April 19, 2026. (Declaration of Jeffrey A. Clause (“Clause Decl.” ¶ 2). Plaintiffs filed a Complaint alleging a single cause of action, medical malpractice-wrongful death against Defendant Al-Temimi and DOES one through fifty on April 7, 2025. B. RELEVANT PROCEDURAL HISTORY On April 15, 2026, Plaintiffs Cassondra and Trevor Lascola (collectively “Plaintiffs”) filed its First Amended Complaint (“FAC”). The clerk’s office issued a civil filing rejection letter on May 13, 2026 citing that the caption of the FAC did not match the summons and additional parties added to the summons. On May 18, 2026, Plaintiff filed its corrected FAC, alleging the same single cause of action, medical negligence – wrongful death against Defendant Al-Temimi, but amended DOES to include Defendant Reza Malek (“Reza”), M.D., Good Samaritan Hospital, L.P. dba Good Samaritan Hospital (“GSH”), and DOES one through twenty five (collectively “Defendants”). Defendants have filed Answers to Plaintiffs FAC: Defendant GSH filed an Answer on June 25, 2026; Defendant Al-Temimi filed an Answer on July 6, 2026; and Defendant Malek filed an Answer on July 9, 2026. C. PRESENT MOTION Five days after the clerk’s civil filing rejection notice, Plaintiffs filed this motion to deem FAC filed nunc pro tunc on May 18, 2026. The proof of service of the motion was subsequently served via electronic mail service on all defense counsel on July 9, 2026. The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 27, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). The Court has carefully reviewed the following, Plaintiff’s notice of motion (totaling 2 pages); memorandum of points and authorities (“MPA”) (totaling 3 pages); Declaration of Jeffrey A. Clause and attached Exhibits 1-5 (totaling 24 pages); proof of service; and the pleadings. II. <u>LEGAL STANDARD</u> A. NUNC PRO TUNC ORDER AMENDING FILINGS “[A] paper is deemed filed when it is deposited with the clerk with directions to file the paper.” (<i>Id.</i> at p. 778.) “The functions of the clerk are purely ministerial. [Citation.] The clerk has no discretion to reject a complaint that substantially conforms to the local rules.” (<i>Rojas v. Cutsforth</i> (1998) 67 Cal.App.4th 774, 776-777; according to <i>Mito v. Temple Recycling Center Corp.</i> (2010) 187 Cal.App.4th 276, 279-281). The Court may issue a nunc pro tunc order amending the filing date of the complaint.

B. CODE OF CIVIL PROCEDURE SECTION 340.5

Pursuant to Code of Civil Procedure section 335.1, a personal injury action generally must be filed within two years of the date of the injury. However, Code of Civil Procedure section 340.5 provides that “in an action for injury or death against a health care provider based upon such person’s alleged professional negligence, the time for the commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first.” (Code Civ. Proc., § 340.5). “‘Professional negligence’ means a negligent act or omission to act by a health care provider in the rendering of professional services, which act or omission is the proximate cause of a personal injury or wrongful death, provided that such services are within the scope of services for which the provider is licensed and which are not within any restriction imposed by the licensing agency or licensed hospital.” (*Id.*, at subd. (2)).

III. ANALYSIS

Here, Plaintiffs seek an Order to have their FAC filed on May 18, 2025 deemed to have been filed nunc pro tunc as of April 15, 2026. Plaintiff filed its original Complaint on April 7, 2026 alleging a single cause of action, medical malpractice – wrongful death against Defendant Al-Temimi. (Clause Decl., ¶ 3; Exhibit 1). On April 15, 2026, Plaintiff filed its FAC alleging the same single cause of action against Defendant Al-Temimi, but amended DOES to include Defendants Malek GSH, and DOES one through twenty five. (*Id.*, ¶ 4; Exhibit 2). On May 13, 2026, the clerk’s office rejected the timely filing of the April 15, 2026 FAC on non-substantive grounds, citing that the caption does not match the summons and additional parties added. (*Id.*, ¶ 5; Exhibit 3). Plaintiff asserts that it promptly identified the errors and resubmitted the FAC. (*Id.*, ¶ 6; Exhibits 4-5). Plaintiff argues that the FAC was timely filed on April 15, 2026 and was rejected on non-substantive defects that should be deemed improperly rejected as an insubstantial reason. (MPA, p. 2-3). Plaintiff argues that under *Rojas v. Cutsforth* (1998) 67 Cal.App.4th 774, 778, the FAC should be deemed filed as of April 15, 2026. (*Id.*). Plaintiff argues that denying nunc pro tunc relief would result in potential arguments regarding a statute of limitations bar as medical malpractice are guided by a one-year statute of limitations, which here is April 19, 2026 based on the death of Decedent La Scola. (*Id.*).

The Court finds that the non-substantive error in the caption not matching the summons with the DOE amendments in the FAC did not require rejection of the filing. Otherwise, the FAC substantially conformed to local rules. (*Rojas v. Cutsforth, supra*, 67 Cal.App.4th at 776-778; *Mito v. Temple Recycling Center Corp., supra*, 187 Cal.App.4th at 279-281). Plaintiff has demonstrated it acted with alacrity upon receiving notice of the clerk’s filing rejection in making the appropriate amendments and refiled the FAC. Simultaneously, Plaintiff filed this motion to address the issue. The Court notes that Defendants have filed Answers to Plaintiffs’ FAC and were timely served notice of the present motion. The motion is unopposed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489). The Court notes that the law’s policy favors disposition of litigation on the merits.

The Court also notes that the FAC amended DOE defendants and under Code of Civil Procedure section 474 relate back to the original complaint to address any statute of limitation issues. (Code Civ. Proc., § 474; *Hahn v. New York Air Brake LLC* (2022) 77 Cal.App.5th 895, 897-889 (“If the statute’s requirements are satisfied, the amendment relates back and the substituted defendant is considered to have been a party from the action’s start.”)).

IV. CONCLUSION

Based on the foregoing, the unopposed motion, the Court GRANTS the motion. It is hereby ORDERED that Plaintiff’s FAC is deemed to be filed on April 15, 2026, nunc pro tunc. The Court will prepare the formal order.